

must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff's causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

The operative complaint is Plaintiff's "Second Amended Complaint," filed July 13, 2026. It alleges the following causes of action on the caption page: 1) Wrongful Eviction/Unlawful Ouster (Cal. Civ. Code 789.3); 2) Conversion; 3) Negligence; 4) Trespass to Chattels. Within the body of the Complaint, Plaintiff also alleges: 5) Negligence; and 6) 42 USC 1983. The Amended Complaint consists mainly of a narrative description of events concerning his alleged tenancy at 2711 Cascade Blvd. Plaintiff alleges he lived there with the owner's permission, but was told not to return to the premises after the owner died. Plaintiff alleges his right to occupy the property is pursuant to a verbal lease agreement with the late owner.

None of the Causes of Action plead any elements at all. They consist simply of a list of causes of action. This is insufficient to put Defendant on notice of the nature, source, and extent of Plaintiff's causes of action. Further, even taken as true and given a liberal reading in favor of the Plaintiff, the facts alleged in the narrative portion of the Amended Complaint do not state sufficient facts to constitute a cause of action against Defendant. Plaintiff has not alleged a landlord-tenant relationship with the County and has not alleged that any particular personal property was unlawfully taken by the County.

Plaintiff has already had the opportunity to amend the Complaint to state a claim for relief against the County, after the County's first Demurrer was sustained with leave to amend. Plaintiff was unable to do so. The Opposition does not identify any additional facts that could be alleged to state a claim. There does not appear to be a reasonable possibility that the Complaint could be further amended to properly state a claim. Therefore, the Demurrer is **SUSTAINED** without leave to amend. A proposed order was improperly included as page 7 of the County's moving papers. Proposed orders must be submitted as stand-alone documents. The County is to submit a new proposed order for execution.

ROWLAND VS. PERRIN CONSTRUCTION, LLC, ET AL.

CASE NUMBER: 26CV-0209639

Tentative Ruling on Motion to Compel Further Responses to Requests for Production:

Plaintiff moves for an order compelling further responses to Requests for Production of Documents, Set One. Plaintiff also requests an award of \$2,000 in sanctions for bringing this Motion. Defendant opposes the Motion.

Pursuant to Ca. Code of Civ. Pro. section 2031.310(b) a motion to compel further responses must be accompanied by a meet and confer declaration under Section 2016.040, which provides "a meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, *either in person, by telephone, or by videoconference*, to informally resolve each issue presented by the motion."

The Declaration of attorney Jameson Evans establishes that counsel sent meet and confer letters identifying deficiencies. The parties thereafter agreed to supplementation and extensions via email. Defendant later missed a deadline to supplement responses as agreed, and Plaintiff filed the instant Motion. There is no evidence in the record of a good faith attempt to meet and confer in person, by telephone, or by videoconference to informally resolve the issues raised by Motion. However, this is not grounds to deny a motion on the merits.

Additionally, Defendant's Opposition identifies numerous issues it alleges are moot due to supplemental responses served on September 10, 2026. As of the preparation of this tentative ruling on September 23, 2026, Plaintiff had not timely filed a Reply brief (due on September 18, 2026 because of the September 25, 2026 Court holiday). Therefore, the Court cannot determine which, if any, substantive issues remain for determination by the Court.

Today's hearing is continued to **Monday, October 19, 2026 at 8:30 a.m. in Department 64**. The parties are ordered to meet and confer in good faith in person, by telephone or by videoconference as required by CCP 2031.310(b). Plaintiff is ordered to file a supplemental meet and confer declaration no later than October 12, 2026, which also identifies all issues remaining to be addressed by the Court. No appearances are necessary on today's calendar.

Tentative Ruling on Motion to Compel Further Responses to Form Interrogatories: Plaintiff moves for an order compelling further responses to Form Interrogatories – General, and Form Interrogatories – Employment Law, Set One. Plaintiff also requests an award of \$2,000 in sanctions for bringing this Motion. Defendant opposes the Motion.

Pursuant to Ca. Code of Civ. Pro. section 2030.300(b) a motion to compel further responses must be accompanied by a meet and confer declaration under Section 2016.040, which provides “a meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, *either in person, by telephone, or by videoconference*, to informally resolve each issue presented by the motion.”

The Declaration of attorney Jameson Evans establishes that counsel sent meet and confer letters identifying deficiencies. The parties thereafter agreed to supplementation and extensions via email. Defendant later missed a deadline to supplement responses as agreed, and Plaintiff filed the instant Motion. There is no evidence in the record of a good faith attempt to meet and confer in person, by telephone, or by videoconference to informally resolve the issues raised by Motion. However, this is not grounds to deny a motion on the merits.

Additionally, Defendant's Opposition identifies numerous issues it alleges are moot due to supplemental responses served on September 10, 2026. As of the preparation of this tentative ruling on September 23, 2026, Plaintiff had not timely filed a Reply brief (due on September 18, 2026 because of the September 25, 2026 Court holiday). Therefore, the Court cannot determine which, if any, substantive issues remain for determination by the Court.

Today's hearing is continued to **Monday, October 19, 2026 at 8:30 a.m. in Department 64**. The parties are ordered to meet and confer in good faith in person, by telephone or by videoconference as required by CCP 2030.300(b). Plaintiff is ordered to file a supplemental meet and confer declaration no later than October 12, 2026, which also identifies all issues remaining to be addressed by the Court. No appearances are necessary on today's calendar.

9:00 a.m. Review Hearings

ALVAREZ- HERNANDEZ VS. MENLOVE, ET AL.

CASE NUMBER: 25CV-0207463

This matter is on calendar for status of service on Defendant Menlove. On April 24, 2026, the Court granted an order to serve Defendant Menlove by publication. No proof of service by publication has been filed. The Court has previously issued and later vacated an Order to Show Cause re Dismissal of this Defendant due to failure to timely serve. This action was filed April 8, 2025 and is still not at issue. An appearance is necessary on today's calendar to provide a status of service.

HOLLOWELL VS. LITTLEPAGE, ET AL.

CASE NUMBER: 25CV-0206936

This matter is on calendar for status and possible trial setting. At the Mandatory Settlement Conference held on July 27, 2026, the Court advised Plaintiff that he was required to serve Defendant Skyline Environmental, Inc. within sixty days. The Court also issued an Order to Show Cause re Sanctions in the amount of \$250 for Plaintiff's failure to timely serve Skyline Environmental. However, due to a clerical error, the OSC did not issue. Plaintiff has since filed a Proof of Service of Summons (on September 3, 2026), however it is invalid because Item 5.b. is incomplete as it does not list the date and time of service, and the appropriate boxes are not checked. An amended proof of service must be filed. Appearances are necessary on today's calendar to discuss status of service, responsive pleadings, and possible trial setting.

LOZANO VS. CALIFORNIA TOWING & TRANSPORT, ET AL.

CASE NUMBER: 25CV-0208662

This matter is on calendar for review regarding status of the case. This matter is at issue. Defendants California Towing and Transport and County of Shasta are the only remaining active Defendants. Each has filed an Answer. Trial has already been set in this matter for **July 27, 2027 at 8:45 in Department 64**. That date is confirmed. No appearances are necessary on today's calendar.

LOZANO VS. COUNTY OF SHASTA

CASE NUMBER: 26CV-0210630

This matter is on calendar for review regarding status of the case. The Court intends to sustain Defendant County of Shasta's Demurrer without leave to amend on this morning's law and motion calendar. Upon receipt of the County's proposed order and the Court's entry of order, all future dates will be vacated and the file closed.

MCCLOSKEY VS. MORENO-MUNGUIA

CASE NUMBER: 25CV-0208928

This matter is on calendar for review regarding status of default judgment. Default judgment was entered on September 23, 2026. Today's hearing is dropped from calendar. No appearances are necessary.

MIDLAND CREDIT MANAGEMENT, INC. VS. GALLAGHER

CASE NUMBER: 25CVG-01942

This matter is on calendar for review regarding status of the case. Notice of Conditional Settlement